Terms of Use

Version 1.3 – February 2024

KPMG ESC&GS (hereinafter **"KPMG"**) provides its clients with an online service, via a secure digital platform for sharing, processing and storing data (hereinafter the **"Platform"**), allowing ensure better reliability and better security of data exchanges of any kind with its clients, including their employees or representatives duly authorized by the client to access the Platform (hereinafter the **"Authorized Users"**) (hereinafter, together, the **"Client(s)"**), in the context of the performance by KPMG of its usual services, including but not limited to the management of the Client's accounting and tax obligations (hereinafter the **" Services"**) in accordance with the mission entrusted by the Client under the terms of an engagement letter or a service contract (hereinafter **"the Mission"**).

KPMG is a member of the KPMG international network made up of independent firms affiliated with KPMG International Limited, a company incorporated under English law ("private company limited by guarantee"), (hereinafter the **"KPMG Member Firms"**).

These general terms and conditions of use (hereinafter the **"T&Cs"**) apply to all KPMG Clients who have access to the Platform. They supplement KPMG's General Conditions of Intervention and the special conditions agreed, where applicable, with each Client in the context of the Mission.

1. LEGAL NOTICE

Publishing company

The Platform is published by **KPMG ESC&GS**, "*société d'exercice libéral par actions simplifiée*", with share capital of €10 000,00, registered with the RCS of Nanterre under number 903 309 490, and whose registered office company is located Tour EQHO, 2 Avenue Gambetta, CG 60055 – 92066 Paris la Défense.

Telephone number: 01 55 68 68 68

Intra-community VAT number: FR 03 903 309 490

KPMG is a member of the regulated professions of chartered accountant, regularly registered in France with the "*Ordre des experts comptables*", governed by the ordinance n°45-2138 dated September 19, 1945 and the Standards of Professional Practice.

Director of publication: contact by email relation-client@kpmg.fr

Hosting

The Platform is hosted by Microsoft Ireland Operations Limited, Att. EOC Program Operations Dept, Atrium Building Block B, Carmenhall Road, Sandyford Industrial Estate, Dublin 18, Ireland**.**

2. PURPOSE

The purpose of the T&Cs is to define the content, conditions of access and operation of the Platform. Access to and use of the Platform are subject to the T&Cs.

By accepting the T&Cs, the Client confirms that he accepts that all or part of the exchanges of data and documents in connection with the Services may be carried out electronically through the Platform, instead of the exchange of data on any other medium, in particular paper, under the conditions of article 4 below.

3. DESCRIPTION OF THE PLATFORM

The Platform is a secure computer application accessible via the Internet, made available to the Client by KPMG allowing the exchange, processing and storage of documents and data, in particular accounting data, in connection with the performance of the Services and ensuring, notably, the following features:

- the posting and management by KPMG of data relating to the performance of the Services.

- the consultation and downloading by the Client of the data subject to the performance by KPMG of the Services.

- the consultation and downloading by KPMG of the data that the Client communicates to KPMG for the performance of the Services, via the Platform.

- the communication of informative content by KPMG to the attention of the Client (such as information relating to the calendar of the Client's accounting and tax deadlines).

- the archiving of the data transmitted between the parties.

The use of the Platform requires the installation of a compatible browser. The Platform is supported by the Google Chrome browser Version 80.0.3987.132 or further version. It is the sole responsibility of the Client to install a compatible browser to access the Platform and use its features.

The data posted on the Platform will be managed by KPMG and its subcontractors in order to perform the Services and to monitor and improve the relationship with the Client.

The functionalities of the Platform may evolve, resulting in a correlative update of these T&Cs. KPMG will inform the Client beforehand by any means.

4. TERMS OF MEMBERSHIP AND USAGE OF THE PLATFORM

4.1 Conditions of membership to the Platform

All KPMG Clients, legal entity or natural persons of legal age, acting for professional needs or not, can subscribe to the Platform.

4.2 Process for joining and connecting to the Platform

Each Authorized User of the Client, including the Client's representative, duly authorized to bind the Client hereunder (hereinafter referred to as "Client's Administrator"), receives from KPMG the login details of his account by e-mail, inviting him to connect to the Platform and initialize his personal password via a hypertext link accessible via the Internet.

Membership of the Platform requires the creation of an account: during his first connection to the Platform, the Client's Administrator is invited to enter the login of his account, to read the T&Cs, to accept them in the name and on behalf of the Client, and to modify his password to activate his account.

The service takes effect on the day of online membership.

The Client's Administrator, from the activation of his account, will have exclusive responsibility for managing the access rights of the Client's Authorized Users. The Client's Administrator will thus be responsible for granting access to Authorized Users, for the status of the Authorized User concerned (administrator, contributor or reader), and for removing a user's access when the latter is no longer authorized by the Client to have access to the Platform.

Thus, KPMG shall in no way be responsible for the management of the access rights of the Authorized Users of the Client and their use of the Platform.

For Clients who are natural persons with consumer status:
In accordance with the provisions of Article L.221-18 of the French "Code de la Consommation", the Client has a period of fourteen (14) days from the date of his online membership to exercise his right of withdrawal without having to justify reasons or to pay a penalty.
The Client may exercise his right of withdrawal by sending, before the expiry of the fourteen (14) day period, the withdrawal form attached in the appendix to the T&Cs, or any other declaration, unambiguous, expressing his will to withdraw, to the attention of KPMG ESC&GS - ESC Business By Innovation - Tour EQHO, 2 Avenue Gambetta, CG 60055 – 92066 Paris la Défense or by e-mail to the following address: relation-client@kpmg.fr.

At any time, during the creation of his account, before validation of the membership and during the validation of the membership, the Client will have the possibility of downloading a copy of these T & Cs in order to be able to refer to them later, this copy constituting the durable medium within the meaning of Article L. 221-13 of the Code de la Consommation.

4.3 ID User and password

Upon joining the Platform, the Authorized User of the Client chooses a password attached to the user ID communicated by KPMG (hereinafter the "User ID") allowing him to access his personal space.

User IDs are personal and confidential. They can only be changed at the request of the Client or at the initiative of KPMG. The Authorized User of the Client guarantees the protection and preservation of the confidentiality of his User ID and passwords for access to his account on the Platform.

The Authorized User of the Client is solely and entirely responsible for the use of the User ID concerning him and undertakes to make every effort to keep his User ID secret and not to disclose them to anyone, in any form whatsoever and for whatever reason.

The Client undertakes not to grant access to the Platform to a third party, with the exception of Authorized Users. Any Authorized User to whom access to the Platform has been granted by the Administrator of the Client must accept the T&Cs during their first connection.

The Client is responsible for the use of his User ID by Authorized Users and by third parties or for actions or declarations made through his personal account, whether fraudulent or not, and guarantees KPMG against any claim in this respect.

Furthermore, since KPMG does not have the obligation and does not have the technical means to ensure the real identity of the people connecting to the Platform via a given login and a password, it is not responsible in case of usurpation of the Client's identity. If the Client has reason to believe that a third party is fraudulently using identification elements or his account, he must immediately inform KPMG.

In case of loss or theft of one of the User IDs concerning him, the Client is responsible for any harmful consequences of this loss or this theft, and must use, as soon as possible, the procedure allowing him to modify them. In the event that he becomes aware of the access of another person to his client account, the Client must immediately inform the person in charge of the Platform by e-mail at the address relation-client@kpmg.fr.

Use of the Platform that would be fraudulent, or that would violate these T&Cs, may justify the closure of the Client account concerned.

4.4 Usage of the platform

The Client undertakes to use the Platform in accordance with its intended purpose and in compliance with the applicable legal and regulatory provisions, morality and the T&Cs.

It is the Client's responsibility to check the compatibility of his computer system with the minimum configuration required for the use of the Platform to be carried out optimally.

The Client agrees that the documents and data that he puts online on the Platform are not infected by worms, viruses or any other similar malicious device. Furthermore, it is the Client's responsibility to take all appropriate precautions to protect their data from any worm, virus or any risk of hacking.

KPMG reserves the right to immediately interrupt the Client's access to the Platform in the event that the Client does not comply with the conditions of use of the Platform as set out in the T&Cs.

The Client undertakes to guarantee compliance with the T&Cs by third parties to whom access to the Platform has been granted by the Client's Administrator and will in any case be jointly and severally liable vis-à-vis KPMG for the execution of their obligations and jointly and severally liable for any breaches by said third parties of the provisions of the T&Cs. If said third parties do not comply with the provisions of the T&Cs, KPMG may at its sole discretion terminate their access to the Platform.

In any case, if the Client suspects fraudulent use of his account, he must immediately notify KPMG.

4.5 User support

During the term of application of the T&Cs, the Client will benefit from technical support and commercial assistance on 09 73 73 30 00 (price of a local call).

In the event of difficulty using the Platform, the Client may contact a member of the KPMG help desk or one of its partners, by e-mail at relation-client@kpmg.fr

5. THIRD-PARTY APPLICATIONS

The Client is hereby informed of the fact that certain applications available on the Platform use third-party solutions and he undertakes to accept the conditions of use when he first connects to said applications.

6. EXCHANGES OF DATA ON THE PLATFORM AND AGREEMENT OF PROOF

By subscribing to the Platform, the Client accepts that all exchanges of documents and data with KPMG in the context of the performance of the Services are carried out online via the Platform in electronic format. Online documents therefore replace paper documents.

Electronic documents are drawn up and stored under conditions that guarantee their integrity and are authentic between the parties.

The parties accept and acknowledge that the data transmitted and stored on the Platform constitute electronic writings within the meaning of article 1366 of the Civil Code. These data will constitute in the relations of the Parties originals and will therefore have the same probative force as writings on paper.

The parties also accept and acknowledge that the Platform provides the necessary means to guarantee that the data will be established and stored in such a way as to guarantee its integrity, in accordance with article 1366 of the Civil Code.

The parties therefore undertake not to contest the admissibility, enforceability or probative force of all the data established and stored in electronic form on the Platform.

7. AVAILABILITY AND MAINTENANCE OF THE PLATFORM

KPMG will make its best efforts to ensure that the Platform is accessible twenty-four hours a day (24 hours a day), seven days a week (7 days a week) for the entire duration of application of the T&Cs, except for unavailability caused by (i) scheduled maintenance, (ii) urgent maintenance, (iii) a case of force majeure within the meaning of Article 14 of the T&Cs or (iv) any other event beyond the reasonable control of KPMG.

8. DURATION AND TERMINATION

8.1 **Duration**

Membership of the Platform by the Client begins to run for an indefinite period from the acceptance by the Administrator of the Client of the T&Cs on the Platform during his first connection.
Membership will remain in effect for the duration of the performance of the Services, subject to the terms provided for in clause 8.2.

8.2 **Termination**

Each party may freely terminate membership of the Platform by registered letter with acknowledgment of receipt for the attention of the other Party. The subscription may also be terminated without notice by one of the parties in the event of a breach by the other party of the provisions of the T&Cs.

From the expiration or termination of the Services, the Client will have a period of thirty (30) days to access the Platform in order to download the data stored there. At the end of this period, all data stored on the Platform will be deleted from the Platform and the Client's account will be closed, it being understood that KPMG will retain for archiving purposes for ten (10) years a copy of the documents and data of the Client, as specified in article 11.3 of the T&Cs.

9. USER FEES

The implementation of the Platform by KPMG, its securing and preservation of documents, generates costs which will be re-invoiced to the Client in addition to the price agreed for the Services.

The costs of using the Platform are set at €360 per year and per Client, with a variable reduction depending on the nature and amount of the Services. These usage fees are independent of the number of Authorized Users. This price does not include the price of maintenance or training services that KPMG may perform from time to time. These services will be invoiced independently of the provision of the Platform.

10. INTELLECTUAL PROPERTY

The Client guarantees that the documents and data that he puts online on the Platform belong to him and refrains in all circumstances from putting online data belonging to third parties. The data posted on the Platform in accordance with the aforementioned provisions will remain the property of the Client.

In addition, the Client undertakes to defend at its own expense and to indemnify KPMG against the consequences of any action or claim made by a third party for violation of its intellectual property rights in connection with the use of the Platform by the Client.

The Platform is the property of KPMG. KPMG grants the Client a non-exclusive non-transferable license, for the sole duration of use of the Platform and terminable under the same conditions as the Services, for the sole purpose of using the Platform according to the terms and conditions defined in the T&Cs. Apart from this user license, KPMG does not grant or transfer any right, license or sub-license on the Platform.

Therefore, the Client agrees not to modify, adapt, translate, decompile, disassemble or prepare works from the Platform.

11. CONFIDENTIALITY AND DATA SECURITY

11.1 Confidentiality

The parties undertake to preserve the confidentiality of all documents and data posted on the Platform.

KPMG undertakes to limit the disclosure of data posted on the Platform by the Client to employees, agents or advisers who need to know it to perform the Services.

Without prejudice to the provisions of this article, the data kept on the Platform, including the data put online by the Client, may be disclosed by KPMG on the order of a competent authority or as a result of legal or regulatory provisions.

The Client undertakes not to disclose, in any way whatsoever, the data put online by KPMG on the Platform and not to reproduce or incorporate them into any other document or publication without the express prior consent of KPMG, in accordance with the provisions of the General Conditions of Intervention.

11.2 Platform Security

KPMG guarantees that the data posted on the Platform will be stored securely.

The Platform and its content are hosted on a secure server located in Europe. This server will be maintained by KPMG or one of its partners, duly mandated by KPMG.

Should the location of the server be modified, KPMG will inform the Client as soon as possible, the latter shall have to give his express consent to make the said modification**.**

11.2.1 Protected infrastructure

Authorized Users can only access the Platform by entering their User ID and password, as specified in article 4.3 above. Other security measures have been provided by Microsoft Azure, within the

framework of the ISO 27001 standard, intended to prevent unauthorized third parties from accessing the Client's documents and content hosted on the Platform or that the documents and data be altered or destroyed.

Communications between the Internet browsers of Authorized Users and the Platform are encrypted using the SSL encryption protocol – based on certificates used by KPMG. The use of this protocol allows the confidentiality of data exchanges between the Internet browser of the Authorized User and the service by a complete encryption of the data sent on the network.

11.2.2 **Protected Architecture**

The space is located on a server in a data center located in Europe in a secure IT environment and the data will not be copied or transferred to another data center, except for Disaster Recovery Plan purposes, always in a Microsoft data center, under Microsoft's terms. The server is owned by Microsoft. Server maintenance and related support services are provided by Microsoft personnel. The Client confirms that the choice of server location complies with its cross-border data protection policy and the regulations applicable to it. If the location of the server hosting the data should be changed, KPMG will immediately inform the Client in writing, giving a minimum notice of 60 calendar days. During this period, the Client will have the option of terminating his membership of the Platform in accordance with article 8.2 (Termination). If the Client continues to use the Platform, he will be deemed to have accepted the change in question.

Detailed technical information on the security measures KPMG applies to the Platform is available upon request. In addition, Microsoft strives to perfect and improve the security architecture of the service as technology evolves.

In the event that an Authorized User inserts links to third-party sites, the Client is informed that KPMG does not perform any control procedures or does not provide guarantees concerning the content of such sites. KPMG does not warrant that such third-party websites are free of viruses.

The Client and Authorized Users agree to comply with all rules and guidelines issued by KPMG regarding security, technology and risk. On the basis of these rules and these directives, the Client undertakes to take the measures which will prove necessary and appropriate for the protection of the Platform and to notify KPMG without delay of any event or any prejudicial action of which it becomes aware that may impact security, by telephone, and then to confirm the facts by registered mail with acknowledgment of receipt. The Client undertakes to notify KPMG without delay of any disagreement with the rules and directives referred to above, in which case KPMG reserves the right to terminate the use of the Platform by the Client.

KPMG undertakes to take without delay, in the event of knowledge of the risk of breach of the security obligation provided for in this article, all the precautionary measures to preserve the data stored on the Platform and to justify these measures at the first Client request.

11.3 **Data retention obligation**

Notwithstanding the deletion of documents and data when his account is closed, the Client accepts and acknowledges that KPMG, in accordance with the provisions of Article L. 123-22 of the Commercial Code, is required to keep for ten (10) years a copy of the accounting data posted by the Client on the Platform.

12. **PERSONAL DATA**

KPMG and the Client undertake to comply with the legal and regulatory provisions in force relating to data processing, files and freedoms, in particular law n°78-17 of January 6, 1978 in its latest version in force, as well as the Regulations (EU) 2016/679 of the European Parliament and of the Council on the

protection of individuals with regard to the processing of personal data and on the free movement of such data (hereinafter the "Regulation"), and repealing Directive 95/46/EC (General Data Protection Regulation), from the date of its entry into force (hereinafter the “Applicable Regulations regarding the protection of Personal Data”).

The Client's registration on the Platform and the exchange of documents and data between the Client and KPMG give rise to the collection and/or automated processing of information or documents containing information relating to an identified natural person or who may be identified, directly or indirectly, by reference to an identification number or to one or more elements specific to it, as defined in the applicable Personal Data Protection Regulations (hereinafter, the "Personal Data") .

This collection and/or processing of Personal Data is carried out by KPMG for the purposes

(i) performance of KPMG's Services through the Platform and the applications that allow it to operate (management of the Client's accounts and tax obligations, social management or management of the payroll of employees, if applicable, management the Client's reporting obligations in social and tax matters),

(ii) providing the Client with technical means consisting in particular of access to the Platform to facilitate and secure exchanges between KPMG and the Client and to allow the Client to use all the services and applications that the Client decides to subscribe to on the Platform,

(iii) management of the business relationship with the Client, including administrative and financial management; communication, storage, archiving and exchange of documents with the Client; technical assistance concerning the Platform, including for commercial prospecting purposes; and

(iv) compliance with the professional and ethical regulations applicable to KPMG (in particular management of the obligation of independence, management of conflicts of interest and quality control)

(v) administration, testing, and support for the IT tools and solutions that KPMG uses as part of its business (messaging, business tools, etc.), hosting of these tools and solutions, archiving and reprography,

(hereinafter collectively defined as the “Purposes”).

12.1 **Personal Data communicated by the Client to KPMG**

The Client may be required to entrust KPMG with Personal Data or documents containing Personal Data through the Platform, in the context of and/or for the purposes of performing the Services and/or for the use of all the services and applications that the Client decides to subscribe to on the Platform. These Personal Data and documents are covered by professional secrecy. As an accounting firm, KPMG is expressly authorized to be the recipient of this Data, covered by professional secrecy, in compliance with its legal and ethical obligations.

Under the principle of data minimization, the Client will only provide KPMG directly or indirectly with the Personal Data that KPMG considers to be strictly necessary for the performance of the Mission. Prior to making them available to KPMG, the Client undertakes to pseudonymize the Personal Data as long as this process does not call for disproportionate effort for the Client.

KPMG is responsible for processing this data for the aforementioned Purposes, due to the independence it has in carrying out its Mission and its mastery of all the means, in particular organizational or technical, that it considers necessary for the accomplishment of its Mission. Generally, the Personal Data transmitted by the Client results from processing for which he himself is responsible, having in particular for purposes the management of his accounting and internal control, the management of his suppliers, the management of the payroll of his employees.

By exception, for the functionalities relating to “new hires”, KPMG will act as a subcontractor in accordance with the instructions set out in the engagement letter, and the Client act as the data controller.

KPMG undertakes not to process the Personal Data entrusted by the Client in a manner incompatible with the Purposes defined above within the framework of the Mission (via an engagement letter or service contract) where applicable, and will cooperate with the Client to ensure that the persons concerned (suppliers, employees, etc.) exercise their rights in accordance with the applicable Personal Data Protection Regulations, and in particular their rights of access and rectification, opposition and deletion of their data and/or notify them of any data breaches. The Client will remain responsible, vis-à-vis the persons concerned, for responding to their requests within the deadlines in accordance with the applicable Regulations on the protection of Personal Data. The Client also undertakes to notify the persons concerned of any breaches of their Personal Data.

If the Client and KPMG have specifically agreed in the context of a particular Mission that the Personal Data entrusted by the Client to KPMG must be located in a given geographical area, it is the Client's responsibility to ensure that its membership of the Platform is compatible with the geographical area in question. In the event of incompatibility, membership of the Platform by the Client entails the express acceptance by the Client of the modification of the geographical area possibly agreed with KPMG in the Mission**.**

12.2 Authorized User’s Personal Data collected by KPMG

In connection with its Mission, KPMG collects Personal Data from Authorized Users, which is automatically processed for the End purposes (i) and (iii) above. KPMG will not use the Personal Data thus collected for any other purpose.

Authorized Users have the right to access, rectify and erase their Personal Data, as well as the right to withdraw their consent to their processing at any time, the right to limit their processing, the right to object to their processing, the right to give instructions as to what will become of their Personal Data after their death, and the right to the portability of such data. They may exercise these rights, and request a copy of the appropriate safeguards on transfers of Personal Data outside the European Economic Area, by contacting the Data Protection Officer by connecting to www.kpmg.fr, at the bottom of the page heading "Privacy policy and data management", then "Manage your data"..

KPMG undertakes to reply to Authorized Users' requests as soon as possible and at the latest within one (1) month and, where applicable, within three (3) months of receipt of the request.

In the event of a dispute over the exercise of the rights of Authorized Users, they shall have the right to lodge a complaint with the Commission Nationale de l'Informatique et des Libertés (CNIL).

12.3 **Recipients**

The recipients of the Personal Data of the Authorized Users of the Client or of those entrusted by the Client to KPMG are KPMG and/or any other KPMG Member Firms and their respective associates, directors and employees as well as, where applicable, its subcontractors. subject to an obligation of confidentiality who need to access/process Personal Data in the context of the Services and the use of the Platform.

KPMG may be required to communicate the Client's Personal Data in order to respond to requests from judicial and/or administrative authorities, in particular in the context of requisitions. KPMG may also be required to communicate such information for the performance of audits relating to the confidentiality of Personal Data or the security thereof and/or to investigate or respond to a complaint or a threat to security. In these cases, and unless there is a legal provision or an injunction from the competent authority preventing it, KPMG undertakes to inform the Client and to limit the communication of Personal Data to those expressly required by the said authorities.

12.4 **Transfer of Personal Data**

KPMG is required to transfer Personal Data or documents containing Personal Data to external companies working on behalf of KPMG or to other KPMG Member Firms or representatives of KPMG located outside the European Economic Area.

In the event that Personal Data is transferred outside the European Economic Area and/or to a country of destination considered by the European Commission as not providing a sufficient level of protection for Personal Data, KPMG implements the one or other of the following guarantee mechanisms: (i) signature of a contract in accordance with the standard contractual clauses adopted by the European Commission ("Standard Contractual Clauses"), (ii) implementation of binding internal corporate rules ("Binding Corporate Rules" or "BCR"), or (iii) any other appropriate guarantee in accordance with the regulations in force.

12.5 **Duration of retention of Personal Data**

In compliance with confidentiality obligations, the Personal Data entrusted by the Client to KPMG are kept for a period in accordance with the provisions governing KPMG's activities in France. The respective Personal Data of the Client and KPMG processed for the purposes of managing the relationship between the Client and KPMG are kept for the period strictly necessary for their commercial relationship and up to 3 (three) years from the last contact of the Client with KPMG.

12.6 **Personal Data of KPMG employees**

Client may be required to process with Personal Data from KPMG employees who carry out the Services in connection with the Mission. Client will not use the Personal Data thus collected for any other purpose and will insure to KPMG employees the right to access, rectify and erase their Personal Data as well as the right to object to the processing of their Personal Data for legitimate reasons.

Client undertakes to reply to KPMG employees' requests as soon as possible and at the latest within one (1) month and, where applicable, within three (3) months of receipt of the request.

Client undertakes to inform KPMG of any potential breaches of the Personal Data of its employees.

12.7 **Security**

KPMG and the Client must take all necessary precautions to preserve the security and confidentiality of the Personal Data to which they respectively have access, and in particular to prevent it from being distorted, damaged, or from unauthorized third parties having access to it. KPMG and the Client undertake in particular not to use or access their respective Personal Data for purposes other than those provided for herein.

KPMG undertakes in particular to put in place (i) physical security measures aimed at preventing access to the premises by unauthorized persons (identity checks, management of authorizations allowing access to the premises to be limited only to persons who need to access it within the framework of their functions and their scope of activity), (ii) authentication processes for users and administrators, as well as measures to protect the administration functions of their information system, (iii) within the framework of support and maintenance operations, an authorization management system and (iv) processes and systems making it possible to trace all the actions carried out on their information system, reporting actions in the event of incident affecting Personal Data.

KPMG's security policy is available at www.kpmg.fr, under the heading "Policy of security". The latest online version of this policy shall prevail.

12.8 **Contact**

For any question relating to the Processing carried out by KPMG and the exercise of the Client's rights, the Client may contact the Data Protection Officer by email at fr-privacy@kpmg.fr. KPMG undertakes to respond to Client requests within one month and, where applicable, at the latest within 3 months of their receipt. In the event of a dispute over the exercise of the Client's rights, the latter has the option of lodging a complaint with the "Commission Nationale de l'Informatique et des Libertés".

13. GUARANTEE

KPMG will ensure that the Platform is functional according to the level of availability provided for in Article 7 of the T&Cs.

Subject to specific provisions agreed between the parties, the aforementioned guarantee replaces any other guarantee, express or tacit, as to the security, reliability or conformity of the Platform or the data stored on the Platform.

The aforementioned guarantee only applies to the extent that the Client uses the functionalities of the Portal in accordance with the provisions of the T&Cs.

14. LIABILITY

KPMG undertakes under an obligation of means to make its best efforts to meet its obligations with regard to the level of availability of the Platform, in accordance with Article 7 of the T&Cs.

KPMG also undertakes to indemnify the Client for any direct and material damage suffered by the Client, resulting exclusively from a proven fault of KPMG or from a breach of its essential obligations under the T&Cs, without being able to exceed the liability cap agreed by the Parties for the Mission concerned. In any case, KPMG cannot be held liable in the event of non-compliant use of the Platform by the Client, with regard to the applicable legal and regulatory provisions, morality and the T&Cs.

The Client is responsible for the access of Authorized Users to the Platform and for all data posted by the Authorized Users on the Platform or by a third party who has had access to the Client's account by the fact, the fault or the Client negligence. He undertakes in particular that the data he puts online on the Platform as well as those put online by a third party to whom access to the Platform has been granted by the Administrator of the Client comply with the legal provisions and applicable regulations, morality and the T&Cs and that they do not infringe the rights of third parties.

The Client is also responsible for the quality of the data uploaded by Authorised Users on the Platform, on the basis of which the Services are performed by KPMG.

The Client also undertakes to indemnify KPMG, its employees, as well as any third party for the consequences of any direct damage resulting from negligence, fault, poor performance or partial or total non-performance of its obligations in connection with the use of the Platform by himself or by any third party to whom access to the Platform has been granted by the Client's Administrator or who has had access to the Client's account by the fact, the fault or Client's negligence.

15. FORCE MAJEURE

If one of the parties is the victim of an event of force majeure as defined in article 1218 of the civil code, the party victim of the event of force majeure cannot be held liable towards the other for a breach of its contractual obligations.

The party invoking the event of force majeure must inform the other party within a reasonable time and the parties undertake in this case to meet as soon as possible in order to determine the measures to be taken to safeguard, as far as possible, their respective interests and limit the financial consequences of the force majeure event.

16. GENERAL PROVISIONS

16.1 **Indivisibility**

The nullity, unenforceability or, more generally, the lack of effect of any of the stipulations of the T&Cs will not affect the rest of the T&Cs, which will be executed as if this stipulation had never existed.

16.2 **Tolerance**

The tolerance of one of the parties vis-à-vis a breach by the other party of one of the provisions of the T&Cs cannot be extended to any subsequent breach. The failure of one of the parties to enforce any of the provisions of the T&Cs will not in any way constitute a waiver of these provisions and will not affect the right of the other party to subsequently impose compliance with the provisions of the T&Cs.

17. APPLICABLE LAW / JURISDICTION

The T&Cs are governed by French law, except for provisions of public order to the contrary from which a Client who is a consumer could benefit.

The parties undertake to seek an amicable settlement of any dispute or claim relating to the validity, interpretation, execution and/or termination of the T&Cs.

Any litigation, any dispute relating to the validity, interpretation, execution and/or termination of the T&Cs will be settled according to the stipulations of the General Conditions of Intervention applicable between KPMG and the Client, except contrary provisions providing for the jurisdiction of another jurisdiction and from which a consumer Client could benefit.

More specifically, for any Client who is a consumer: any disputes that may arise between KPMG and its Client will be brought, before any legal action, before the President of the Regional Council of the ”Ordre des Experts Comptables” to which the KPMG ESc&GS Office depends, for reconciliation purposes.

In the event of a persistent dispute, the Client may have free recourse to a mediation procedure with the consumer mediator under the conditions provided for in Articles L.611-1 to L.616-3 of the Consumer Code.

The competent consumer mediator is the CIMA Interprofessional Center for Mediation and Arbitration – 32 Quai Perrache – 69002 Lyon – Tel: 04 78 28 26 70 – contact@cima-mediation.com.

Referral to this mediator can only take place after an amicable resolution of the dispute has been attempted beforehand on the basis of a written complaint lodged with KPMG.

For consumer customers pursuant to article 4.2

MODEL WITHDRAWAL FORM

(*Please complete and return this form only if you wish to withdraw from the contract.)*

For the attention of KPMG ESC&GS - ITS, at the following postal address: Tour EQHO, 2 Avenue Gambetta, CG 60055 – 92066 Paris la Défense. or by e-mail to the following address: relation-client@kpmg.fr.

I/we (*) hereby notify you of my/our (*) withdrawal from membership of the Platform

Name of consumer(s):

Address of consumer(s):

Signature of the consumer(s) (only in case of notification of this form on paper):

Date :

(*) Strike out the useless mention.